



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: County Pocket Annexation #8
Date: September 8, 2025

Background:

The item for consideration is a resolution to allow the City to proceed with a City-initiated annexation. Annexation of County pockets is a 2022 City Council priority. A "County pocket" is an area of unincorporated land 100% surrounded by the City of Cheyenne.

The proposed Governing Body review schedule is as follows:

- Introduction and referral September 8, 2025
- Public Services Committee September 15, 2025
- Final consideration September 22, 2025

This annexation is comprised of 20 properties 100% surrounded by the City (See attached map). Of the 20 parcels, a majority are developed with residential uses, a few are developed with commercial uses and others are undeveloped or incorporated into adjacent parcels under similar ownership. The City has maintained contact with the County Planning Office to coordinate any pending permits or development reviews. Currently there are no active permits or development specific to the properties proposed for annexation.

On August 12, 2025, City staff mailed a courtesy notice by first class mail to all landowners included in this annexation area inviting them to a "Question and Answer" on Wednesday August 26, 2025.

Annexation also requires establishing a City zone. Staff has created a tentative timeline for the annexation and establishment of City zoning districts for the subject properties. Zone districts will be established on the assigned zoning process of Unified Development Code (UDC) section 2.2.8. In the event of split zoning (where two zone districts divide an existing tract of land), the City intends to apply the more restrictive zone unless extenuating circumstances exist.

Estimated Annexation Timeline*

Monday, September 8, 2025	Resolution certifying compliance introduction
Monday, September 15, 2025	Public Services Committee
Monday, September 22, 2025	Final consideration of resolution
Monday, November 3, 2025	Zoning consideration by Planning Commission
Monday, November 10, 2025	Annexation and Zoning ordinances Governing Body public hearing (annexation) and introduction and referral
Monday, November 17, 2025	Annexation and Zoning ordinances Public Services Committee
Monday, November 24, 2025	Annexation and Zoning ordinances Governing Body second reading
Monday, December 1, 2025	Annexation and Zoning ordinances Public Services Committee
Monday, December 8, 2025	Annexation and Zoning ordinances Governing Body third and final Reading
Approximately December 12, 2025	Annexation ordinance and map recording

*Dates subject to change.

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CERTIFYING COMPLIANCE WITH WYOMING STATUTE § 15-1-402 FOR THE CITY-INITIATED ANNEXATION OF VARIOUS TRACTS OF LAND COMPLETELY SURROUNDED BY CURRENT CITY LIMITS SITUATE IN EAST CHEYENNE GENERALLY LOCATED SOUTH OF LARAMIE STREET, EAST OF T-BIRD DRIVE, NORTH OF EAST LINCOLNWAY AND US 30, AND WEST OF PARSONS PLACE."

WHEREAS, the City of Cheyenne desires to initiate annexation proceedings for certain tracts of land located in northeast Cheyenne, comprising a total of approximately 13.64 acres, more or less, as depicted in Exhibit A, which is attached hereto and incorporated herein by this reference;

WHEREAS, the subject lands are more particularly described as follows:

Parcel #1:

THE NORTH 189.77 FEET OF THE SOUTH 269.77 FEET OF TRACT 8,
SUNNY SIDE ADDITION.

Parcel #2:

THE SOUTH 50.00 FEET OF THE NORTH 176.00 OF TRACT 8,
SUNNY SIDE ADDITION.

Parcel #3 - 5:

ALL OF LOTS 8-9, 17-19 AND LOT 21, BLOCK 1, RIDGE HOMES
SUBDIVISION.

Parcel #6:

ALL OF LOTS 1-10, BLOCK 1, WININGER SUBDIVISION

Parcel #7:

ALL OF TRACT 10, ROBITAILLE SUBDIVISION.

Parcel #8:

ALL OF TRACT 13, SUNNYSIDE ADDITION, SECOND FILING.

Parcel #9:

ALL OF LOT 3, BLOCK 1, GREENWAY ADDITION;

AND

A PARCEL OF LAND BEING A PORTION OF THE OLD U.S. HIGHWAY 30 (LINCOLN HIGHWAY) RIGHT-OF-WAY BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE SOUTHEAST CORNER OF SAID LOT 3 A FOUND STANDARD WYDOT RIGHT-OF-WAY MARKER AND A POINT ON THE WEST LINE OF COLLEGE DRIVE; THENCE S. $09^{\circ}13'06''$ W. ALONG THE SAID WEST LINE A DISTANCE OF 235.31 FEET TO THE INTERSECTION OF THE SAID WEST LINE OF COLLEGE DRIVEN AND THE NORTH LINE OF EAST LINCOLNWAY A FOUND STANDARD WYDOT RIGHT-OF-WAY MARKER; THENCE S. $63^{\circ}07'34''$ W. ALONG THE SAID NORTH LINE A DISTANCE OF 225.64 FEET TO A FOUND ALUMINUM CAP; THENCE N. $41^{\circ}08'59''$ W. A DISTANCE OF 96.54 FEET TO A POINT ON THE SOUTH LINE OF SAID LOT 3 A FOUND ALUMINUM CAP; THENCE N. $49^{\circ}08'56''$ E. ALONG THE SAID SOUTH LINE A DISTANCE OF 399.90 FEET TO THE POINT OF BEGINNING.

Parcel #10:

ALL THAT PORTION OF A 16.00 FOOT ALLEY BEING CONTIGUOUS WITH AND ADJOINING LOTS 1-4, BLOCK 2, FOXCREST SUBDIVISION.

Parcel #11:

A PARCEL OF LAND SITUATE IN PORTIONS OF TRACTS 31 & 32, SUNNYSIDE ADDITION, SECOND FILING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE SOUTHEAST CORNER OF LOT 2, BLOCK 1, DRISCOLL SUBDIVISION, THENCE N. BEGINNING AT THE SOUTHEAST CORNER OF LOT 2, BLOCK 1, DRISCOLL SUBDIVISION, THENCE N. $48^{\circ}55'03''$ E. ALONG THE SOUTHEAST LINE OF SAID LOT 2 A DISTANCE OF 193.59 FEET TO A POINT ON THE WEST LINE OF CLEVELAND AVENUE; THENCE S. $00^{\circ}01'16''$ W. ALONG THE SAID WEST LINE A DISTANCE OF 79.79 FEET TO A POINT; THENCE S. $49^{\circ}07'36''$ W. A DISTANCE OF 83.29 FEET TO

A POINT ON THE NORTH LINE OF PERSHING BOULEVARD;
THENCE N. 89°39'26" W. ALONG THE SAID NORTH LINE A
DISTANCE OF 90.41 FEET TO THE POINT OF BEGINNING.

Parcel #12:

ALL OF TRACTS 1 & 2, GALATIA SUBDIVISION;

AND

PORTIONS OF TRACTS 119, 135 AND 136, SUNNYSIDE ADDITION, 4TH FILING
AND A PORTION OF VACATED CHEYENNE STREET BEING MORE
PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE SOUTHEAST CORNER OF LOT 2, BLOCK 1,
SUNNYSIDE ADDITION, 13TH FILING; THENCE N. 00°07'37" E. A
DISTANCE OF 248.74 FEET TO A FOUND ALUMINUM CAP;
THENCE N. 00°05'36" E. A DISTANCE OF 210.17 FEET TO A POINT
ON THE SOUTH LINE OF SPRINGER SUBDIVISION A FOUND
ALUMINUM CAP; THENCE N. 89°37'32" E. A DISTANCE OF N.
89°37'32" E. A DISTANCE OF N. 89°37'32" E. A DISTANCE OF 147.95
FEET TO A THE SOUTHEAST CORNER OF LOT 11, BLOCK 1,
SPRINGER SUBDIVISION A FOUND ALUMINUM CAP; THENCE S.
00°00'37" W. A DISTANCE OF S. 00°00'37" W. A DISTANCE OF S.
00°00'37" W. A DISTANCE OF 150.00 FEET TO A POINT; THENCE S.
89°40'44" E. A DISTANCE OF 172.79 FEET TO A POINT; THENCE S.
00°03'33" W. A DISTANCE OF 29.03 FEET TO A POINT S. 00°03'33"
W. A DISTANCE OF 29.03 FEET TO A POINT S. 00°03'33" W. A
DISTANCE OF 29.03 FEET TO A POINT ON THE NORTH LINE OF
U.S. HIGHWAY 30 A FOUND ALUMINUM CAP; THENCE S.
49°09'46" W. ALONG THE SAID NORTH LINE A DISTANCE OF
425.04 FEET TO THE POINT OF BEGINNING.

WHEREAS, Wyoming Statute § 15-1-404 specifies the requirements for initiating
annexation proceedings by cities and towns and requires that a resolution be adopted by the
Governing Body certifying compliance with Wyoming Statute § 15-1-402;

WHEREAS, based on reasonable evidence, the Governing Body has determined that the
territory to be annexed complies with Wyoming Statute § 15-1-402 and meets the following
criteria found in Wyoming Statute § 15-1-402(a):

- (i) The annexation of the area is for the protection of the health, safety and welfare of the
persons residing in the area and in the City of Cheyenne;

(ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the City of Cheyenne;

(iii) The areas sought to be annexed is a logical and feasible addition to the City of Cheyenne and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;

(iv) The area sought to be annexed is contiguous with or adjacent to the City of Cheyenne;

(v) The Governing Body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyoming Statute § 15-1-410; and

(vi) The City of Cheyenne is prepared to, not less than twenty (20) business days prior to the public hearing required by Wyoming Statute § 15-1-405(a), send by certified mail to all landowners and affected public utilities within the territory a summary of the annexation report as required under Wyoming Statute § 15-1-402(c) and notice of the time, date and location of the public hearing required by Wyoming Statute § 15-1-405(a).

WHEREAS, the City of Cheyenne has created an annexation report, which contains, at a minimum, the required information from Wyoming Statute § 15-1-402(c);

WHEREAS, the City of Cheyenne shall prepare for each landowner and affected public utility so requesting in writing, the estimated cost of infrastructure improvements required of the landowner and affected public utility related to the annexation pursuant to Wyoming Statute § 15-1-402(e);

WHEREAS, the annexation of this territory will not create an area which is situated entirely within the boundaries of the City of Cheyenne, following criteria found in Wyoming Statute § 15-1-406(d); and

WHEREAS, the Governing Body finds the territory to be annexed does not meet the criteria specified under Wyoming Statute § 15-1-412 and thus does not require the written consent of the owner of the territory before being annexed by the City of Cheyenne.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the land described above, and as shown in Exhibit A, complies with Wyoming Statute §15-1-402, and that the procedures outlined in Wyoming Statute § 15-1-405 and Wyoming Statute § 15-1-406 shall hereby be initiated.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

Exhibit A

